



EASEMENT of RIGHTS-OF-WAY

POLICY 5-9

PURPOSE: To establish guidelines on easement and rights-of-way.

INTRODUCTION:

Easement of rights-of-way is a delicate matter if not properly done. Tactfulness and diplomacy are the key words used in this respect. In spite of these approaches, some lot owners resist the partial use of their property. Realizing that right-of-way is very important for the expansion of electrification in the coverage area, the Board deems it necessary to adopt the following policies.

POLICIES:

1. Easement of distribution lines shall be obtained from members without charge to the cooperative.
2. Any payment for right-of-way clearance for transmission lines shall be kept at minimum and shall not exceed the scale adopted by the Board.
3. All right-of-way easements for the cooperative shall be evidenced by a duly-executed certificate signed by the owner of the property.
4. In determining the location of rights-of-way, the manager shall, to the extent he deems feasible, consider the wishes of the lot owner; the manager shall inform the Board in any instance where controversy over the location of cooperative lines make it impossible to obtain easement or threatens good public relations.

IMPLEMENTATION:

The General Manager shall be responsible for the implementation of this policy.

(SGD) MANUEL E. GONZLES
President

APPROVED per Resolution No. 15-78 dated January 31. 1978.